



DEPARTMENT OF HEALTH & HUMAN SERVICES

Indian Health Service  
Office of Management Services  
Division of Acquisition Policy (DAP)  
5600 Fishers Lane  
Rockville, MD 20857

**INDIAN HEALTH SERVICE  
BUY INDIAN ACT  
INDIAN ECONOMIC ENTERPRISE  
REPRESENTATION FORM**

**SOLICITATION/SOURCES SOUGHT/RFI #:** \_\_\_\_\_

**PROJECT TITLE:** \_\_\_\_\_

**DATE:** \_\_\_\_\_

In accordance with 25 U.S.C. 47 the Buy Indian Act, the signature below constitutes self-certification that the Offeror meets the definition of an “Indian Economic Enterprise” (HHSAR 326.601) in response to this Sources Sought Notice, Request for Information (RFI) or Solicitation and resultant contract.

The enterprise must meet the definition of “Indian Economic Enterprise” throughout the following time periods:

- (1) At the time an offer is made in response to this solicitation;
- (2) At the time of contract award; and
- (3) During the full term of the contract performance period. At any point during these periods, if the Contractor no longer meets the eligibility requirements, the contractor must provide immediate written notification to the Contracting Officer.

Individual Contracting Officers may require documentation of eligibility before awarding a set-aside or sole source contracts under the Buy Indian Act and awards may be subject to protest if the eligibility of the successful Offeror is in question. In addition to the self-certification requirements, successful Offerors must also be registered with the System of Award Management (SAM).

Any false or misleading information submitted by an enterprise when submitting an offer in consideration of an award set-aside under the authority of the Buy Indian Act is a violation of the law and punishable under 18 U.S.C. 1001. False claims submitted as part of contract performance are subject to the penalties enumerated in 31 U.S.C. 3729 to 3731 and 18 U.S.C. 287.

**REPRESENTATION**

The Offeror represents as part of its offer that it does \_\_\_\_\_, does not \_\_\_\_\_ meet the definition of an “Indian Economic Enterprise” with “Indian Ownership” under the authority of the Buy Indian Act.

\_\_\_\_\_  
**Name of Federally Recognized Tribal Entity**

\_\_\_\_\_  
**Name of the 51% owner of IEE Firm**

\_\_\_\_\_  
**Business Name**

\_\_\_\_\_  
**Certifying Signature**

\_\_\_\_\_  
**DUNS Number**

\_\_\_\_\_  
**Print Name**